

3.

CASE #	CASE NAME	HEARING NAME
CVRI2601955	GILLESPIE VS FORD MOTOR COMPANY	DEMURRER

Tentative Ruling:

Defendant has complied with the statutory obligation to meet and confer pursuant to CCP §§ 430.41 and 435.5. (See Declaration of Natalie Bridges.)

The Court grants Defendant's RJN of prior orders in two mass tort actions:

Exhibit "A" Opinion and Order Granting Defendant's Motion to Sever, November 8, 2024, Jones v. Ford, No.24-CV-10721 (E.D. Mich.)

Exhibit "B" Minute Order, February 26, 2026, Fuller v. Ford, No. 25SMCV01422 (Los Angeles Super.)

However, judicial notice would only extend to the existence of the prior orders, that Plaintiff was a party to those mass actions and that they were dismissed for misjoinder, and not to the truth of factual matters asserted in court records. (*Herrera v. Deutsche Bank National Trust Co.* (2011) 196 Cal.App.4th 1366.)

Statute of Limitations

5th and 6th causes of action

These are the two causes of action withdrawn by Plaintiff in the Opposition. **The demurrer is sustained as to the 5th and 6th causes of action without leave to amend.**

4th cause of action for Breach of the Implied Warranty of Merchantability

Plaintiff withdrew its Song Beverly Act claims (the 5th and 6th cause of action) but maintains the 4th cause of action for breach of implied warranty of merchantability under Commercial Code § 2314 and 10212. However, Defendant does not discuss the limitations period for this claim. Instead, Defendant discusses warranties under the Song Beverly Act. Defendant does not address how the following applies to a claim not alleged under the Act.

Defendant contends that under the SBA, in no event shall such implied warranty have a duration of more than one year following the sale of new consumer goods to a retail buyer. (Cal. Civ. Code § 1791.1(c).) Because implied warranties do not extend to future performance, any breach of the implied warranty of merchantability necessarily occurs, if at all, at or near the time of delivery and must arise within this one-year period. Under Com. Code § 2725, accrual of an implied warranty claim occurs upon tender of delivery. (Cal. Com. Code § 2725, subds. (1), (2).) Accordingly, Plaintiff's implied warranty claims accrued at delivery and are limited to breaches occurring within one year thereafter.

Per Defendant, Plaintiff purchased the vehicle in January 2019. Any breach of the implied warranty of merchantability had to occur no later than January 31, 2020. Even if Plaintiff's

claims should be tolled for 604 days during the pendency of the Jones and Fuller actions (the 604 days is not disputed by the parties, only the application of the equitable tolling doctrine), Plaintiff needed to file the present action by September 27, 2021. This action was not filed until four and a half years later, on March 27, 2026.

However, Plaintiff alleges breach of the implied warranty of merchantability under the Commercial Code. (Compl. ¶¶ 209-227.) This breach is also actionable under the federal Magnuson-Moss Warranty Act. (Compl. ¶¶ 180-195.) The statute of limitations for these implied warranty claims is four years. (Cal. Com. Code, § 2725; *Mexia v. Rinker Boat Co., Inc.* (2009) 174 Cal.App.4th 1297, 1306.) Plaintiff is right but does not explain how the Complaint is timely. **The demurrer is sustained as to the 4th cause of action with ten (10) days leave to amend.**

1st cause of action for violation of Consumer Legal Remedies Act

A cause of action brought under the California Consumer Legal Remedies Act (“CLRA”) shall be commenced not more than three years from the date of the commission of the alleged unfair or deceptive method, act, or practice. (Cal. Civ. Code § 1783.)

Plaintiff’s allegations concerning Ford’s methods, acts, or practices point to the date of sale. (See Complaint, ¶¶ 179-181.) Plaintiff claims that, had Ford disclosed the alleged transmission defect, they would not have acquired the vehicle or would have paid less for it. (Complaint ¶ 176.) Further, Plaintiff states that “[a]t the time of Plaintiff’s acquisition of the Vehicle, Ford knew, should have known, or was reckless in not knowing of its misrepresentations concerning the Vehicles’ inability to perform as warranted.” (Id. at ¶ 163.) Accordingly, Plaintiff’s CLRA claims accrued in January 2019, when they purchased the vehicle.

In order to comply with the statute of limitations period, Plaintiff needed to bring this action within three years of purchasing the vehicle. At the latest, this would be January 31, 2021. And even if the claims should be tolled for 604 days during the pendency of the Jones and Fuller cases, Plaintiff needed to have filed this action by September 27, 2022, but this action was not filed until three and a half years later, on March 27, 2026. **The demurrer is sustained as to the 1st cause of action with ten (10) days leave to amend.**

7th cause of action for fraud

A cause of action for fraud shall be commenced within three years of the Plaintiff’s discovery of the facts constituting fraud. (Code of Civ. Proc. § 338(d).) All of Plaintiff’s allegations concerning Ford’s conduct constituting fraud point to the date of sale. First, Plaintiff alleges “Ford actively concealed and/or suppressed material facts [...] with the intent to induce Plaintiff to pay for and acquire the Vehicle.” (Complaint ¶ 271.) Plaintiff expressly alleges that the fraudulent transaction occurred when the Subject Vehicle was purchased. (Id.)

Accordingly, any action for fraud was required to have been brought within three years of purchasing the Subject Vehicle, at latest January 31, 2021. Even assuming that Plaintiff’s

claims should be tolled for a total of 604 days during the pendency of Jones and Fuller, Plaintiff needed to have filed this action by September 27, 2022. This action was not filed until three and a half years later, on March 27, 2026. **The demurrer is sustained with ten (10) days leave to amend.**

8th cause of action for Unfair Competition Law

Any action to enforce a cause of action pursuant to California's Unfair Competition Law ("UCL") shall be commenced within four years after the cause of action accrued. (Bus. & Prof. Code § 17208.) Plaintiff's allegations concerning Ford's unfair competition point to the date of sale. First, Plaintiff alleges Ford's misleading and deceptive acts and practices were intended to result in Plaintiff purchasing the Subject Vehicle. (Complaint ¶ 282.) Plaintiff claims that had Ford disclosed the alleged transmission defect, they would not have acquired the vehicle or would have paid less for it. (Id.) Accordingly, any action for violation of UCL must have been filed before, at latest January 31, 2022, four years after the purchase of the Subject Vehicle. Even if Plaintiff's claims should be tolled for a total of 604 days during the pendency of Jones and Fuller, Plaintiff needed to have filed this action by September 27, 2023. This action was not filed until two and a half years later, on March 27, 2026. **The demurrer is sustained with ten (10) days leave to amend.**

Tolling

Plaintiff purchased the Subject Vehicle used in January 2019, when it had approximately 65,000 miles (Compl. ¶ 5.) but did not first assert claims against Ford until March 20, 2024 (Compl. ¶ 157.)—more than five years later—and did not file this individual action until March 27, 2026. Plaintiff tries to avoid the time bars by invoking delayed discovery, fraudulent concealment and equitable tolling.

California's equitable tolling doctrine is "a judicially created nonstatutory doctrine" that "operates independently of the language of the Code of Civil Procedure and other codified sources of statutes of limitation." (*McDonald v. Antelope Valley Community College Dist.* (2008) 45 Cal.4th 88, 99 (citations omitted).) It is "designed to prevent unjust and technical forfeitures of the right to a trial on the merits when the purpose of the statute of limitations—timely notice to the defendant of the plaintiff's claims—has been satisfied." Id. "[A]pplication of the doctrine of equitable tolling requires timely notice, and lack of prejudice, to the defendant, and reasonable and good faith conduct on the part of the plaintiff." (*Appalachian Ins. Co. v. McDonnell Douglas Corp.* (1989) 214 Cal.App.3d 1, 39.) Rather than address the relevant standard, Ford claims that Plaintiff is alleging federal *American Pipe* tolling, an entirely different concept that can apply in the context of class action litigation. (Demurrer at 7.)

Plaintiff alleges equitable tolling under California law. (See *Hatfield v. Halifax PLC* (9th Cir. 2009) 564 F.3d 1177, 1188 (holding that California equitable tolling applied and distinguishing it from *American Pipe* tolling).)

Prior mass actions

As explained by Plaintiff, Plaintiff first sued the same defendant, Ford, for the same Transmission Defects in the same Vehicle on March 20, 2024 (the Jones case), but that action was dismissed for misjoinder in November 2024. (Compl. ¶ 157.) Plaintiff refiled the claims against Ford on March 20, 2025 (the Fuller case), and the action was dismissed for misjoinder with instructions to refile individually. (Compl. ¶ 158.)

This action filed March 27, 2026, “is in reality a continuance” of the earlier actions involving the same parties and the same facts. (See *Appalachian Ins. Co.*, 214 Cal.App.3d at 39.) All elements of the equitable tolling doctrine are met. (Compl. ¶¶ 157-60.) First, Plaintiff’s first (Jones) and second (Fuller) filings provided timely notice to Ford that Plaintiff was suing it for the Transmission Defect in this Vehicle. Second, there is and can be no showing of any prejudice to Ford. Third, Plaintiff acted reasonably and in good faith. Equitable tolling applies, and Plaintiff’s claims timely commenced with the Jones case. (See *Tarkington v. California Unemployment Ins.* (2009) 172 Cal.App.4th 1494, 1507 (claims timely because first action was timely). Alternatively, the claims are timely because Jones and Fuller cases tolled limitations for at least 606 days.

Ford argues equitable tolling should not apply because the Jones and Fuller cases were dismissed due to “procedural defects [that] were due to Plaintiff’s own conduct.” (Demurrer at 7.) However, none of the cases cited by Ford (all from federal courts) holds that the claims there at issue were barred by limitations because California’s equitable tolling doctrine did not apply. The California decision with the closest facts is *Tarkington v. California Unemployment Ins. Appeals Bd.* (2009) 172 Cal.App.4th 1494. In *Tarkington*, the plaintiffs filed the first action against two defendants, the grocers Albertson’s and Ralphs. (*Id.* at 1499-1500.) Albertson’s demurred to that petition, arguing it “improperly joined claims made against Albertson’s and Ralphs.” (*Id.* at 1500.) The trial court sustained the demurrer, finding “a misjoinder of parties defendant.” (*Id.*) Then, after limitations period had expired, the plaintiffs filed a second, separate action against only Albertson’s. (*Id.* at 1501.) When Albertson’s demurred to the second action and argued it was time-barred, the trial court agreed. (*Id.*) However, the Court of Appeals reversed because “the doctrine of equitable tolling applies in this case” and “[w]hat matters is whether the first claim was filed in a timely fashion.” (*Id.* at 1502-07.) The Court of Appeal did not concern itself with whether the misjoinder in the first action was “due to plaintiffs’ own conduct.” Rather, it considered the factors described above and concluded equitable tolling applied despite the fact that the plaintiffs had improperly joined parties in the first action. (*Id.* at 1502-07.)

Furthermore, Ford’s suggestion that whether the plaintiff made a procedural misstep when filing the first action should be the deciding factor is contrary to the rationale underlying equitable tolling. “[T]he primary purpose of the statute of limitations is normally satisfied when the defendant receives timely notification of the first of two proceedings.” (*Elkins v. Derby* (1974) 12 Cal.3d 410, 417, fn.3.) “The equitable tolling doctrine rests on the concept that a plaintiff should not be barred by a statute of limitations unless the defendant would be unfairly prejudiced if the plaintiff were allowed to proceed.” (*Aguilera*

v. Heiman (2009) 174 Cal.App.4th 590, 598.) Thus, courts “have, and should, ‘liberally appl[y] tolling rules or their functional equivalents to situations in which the plaintiff has satisfied the notification purpose of a limitations statute.’” (*McDonald v. Antelope Valley Community College Dist.* (2008) 45 Cal.4th 88, 102 (citations omitted).)

Notwithstanding, as noted above in the discussion of the statutes of limitations as to the remaining causes of action, even if Plaintiff’s claims should be tolled for a total of 604 days during the pendency of Jones and Fuller, Plaintiff needed to have filed this action earlier in time to comply with the limitations periods.

Fraudulent concealment and delayed discovery

“The doctrine of fraudulent concealment tolls the statute of limitations where a defendant, through deceptive conduct, has caused a claim to grow stale.” (*Aryeh v. Canon Business Solutions, Inc.* (2013) 55 Cal.4th 1185, 1192; see e.g., *Baker v. Beech Aircraft Corp.* (1974) 39 Cal.App.3d 315, 324–325 (limitations are tolled by manufacturer’s fraudulent concealment of product defect). Fraudulent concealment tolling “applies to any type of case.” (*Snapp & Associates Ins. Services, Inc. v. Malcolm Bruce Burlingame Robertson* (2002) 96 Cal.App.4th 884, 890 (citation omitted); *Kane v. Cook* (1857) 8 Cal. 449, 461 (“[W]e therefore hold, that in all cases a fraudulent concealment of the fact, upon the existence of which the cause of action accrues, is a good answer to the plea of the Statute of Limitations.”)).

Plaintiff claims she has adequately pled both the elements of a substantive fraudulent concealment cause of action (Compl., ¶¶ 267-275), as well as the requisite grounds for tolling of limitations due to fraudulent concealment and/or delayed discovery. (Id. ¶¶ 130-156). However, as to fraudulent concealment, Plaintiff has not alleged sufficient facts to constitute this claim, as discussed below. Mainly, the claim is not alleged with the requisite specificity.

As to delayed discovery, “a cause of action under the discovery rule accrues when the plaintiff discovers or should have discovered all facts essential to his cause of action.” (*Moreno v. Sanchez* (2003) 106 Cal.App.4th 1415, 1423.) . “In a case such as this, that date is the date the complaining party learns, or at least is put on notice, that a representation was false.” (*Brandon G. v. Gray* (2003) 111 Cal.App.4th 29, 35.)

Plaintiff has not adequately alleged delayed discovery. Plaintiff purchased the Subject Vehicle used in January 2019, when it had approximately 65,000 miles (Compl. ¶ 5.) but did not first assert claims against Ford until March 20, 2024 (Compl. ¶ 157.)—more than five years later—and did not file this individual action until March 27, 2026. Instead, the Complaint alleges only that they filed suit “within two years of when they discovered or should have discovered” them and that, “[w]ithout the benefit of counsel,” they could not have discovered the allegedly concealed facts. (Compl. ¶¶ 152–153.) Those conclusions are particularly insufficient because Plaintiff simultaneously alleges that they experienced jerky shifting and dangerous hesitation requiring multiple repair attempts and repeated PCM and/or TCM reprogramming. (Compl. ¶ 140.) Yet, they do not allege when those events occurred.

Failure to State Facts

4th cause of action for breach of implied warranty

The argument in the Demurrer lumps the 4th, 5th and 6th causes of action together. Since the 5th and 6th causes of action have been withdrawn, this leaves the 4th cause of action.

Plaintiff purchased the vehicle used. (Complaint ¶ 5.) California law is clear that in the sale of used vehicles, liability for breach of implied warranty does not lie with the manufacturer. (*Ruiz Nunez v. FCA US LLC* (2021) 61 Cal.App.5th 385, 398-399; Civ. Code § 1795.5.) Ford never acted as a “distributor or retail seller” of used consumer goods under Civ. Code §§ 1791(e), 1791(l), and 1795.5 with respect to the Subject Vehicle. [Under SBA, a “distributor” is a person or entity that “stands between the manufacturer and the retail seller in purchases, consignments, or contracts for sale of consumer goods.” (Civ. Code § 1791(e).) A “retail seller” is a person or entity that “engages in the business of selling or leasing consumer goods to retail buyers.” (Civ. Code § 1791(l).) Ford is neither.]

1st and 7th causes of action

“In California, fraud must be pled specifically; general and conclusory allegations do not suffice.” (*Lazar v. Superior Court* (1996) 12 Cal.App.4th 631, 645.) The heightened pleading standard requires a plaintiff to allege facts showing “how, when, where, to whom, and by what means” the alleged fraud occurred. (Id.)

As to the 1st and 7th causes of action, the Complaint still does not allege Plaintiff-specific facts connecting Ford’s alleged conduct to their January 2019 used-vehicle purchase. Plaintiff alleges only that they relied on “one or more” of seven broad categories of information, including websites, online advertisements, television or radio advertisements, brochures, print advertisements, consumer reviews, and dealer representations. (Compl. ¶ 6.) They do not identify which source they reviewed, what statement they encountered, when they encountered it, or who communicated it to them.

Plaintiff fails to plead, among other things, the specific “facts” that Ford allegedly failed to disclose, allegations establishing that Ford knew of those “facts” at the time Plaintiff purchased their vehicle, what advertisements, brochures, or other materials where Ford could have disclosed the allegedly omitted “facts” that Plaintiff reviewed and relied upon in purchasing the Subject Vehicle, how long prior to purchasing the vehicle they viewed them; and whether those materials, if any, were prepared by Ford or someone else (such as a dealership).

Plaintiff contends Ford made misrepresentations in its marketing materials and window stickers and sales representatives (Complaint ¶ 136), without identifying what specifically Ford misrepresented. Rather, Plaintiff cites to allegedly “misleading” claims made about transmissions other than the 6F35. (Id. at ¶ 126(d).)

Fraud pleadings against a corporation must allege the names of the persons who made the misrepresentations, their authority to speak for the corporation, to whom they spoke,

what they said or wrote, and when it was said or written. (*Tarmann v. State Farm Mutual Automobile Insurance Co.* (1991) 2 Cal.App.4th 153, 157.) Plaintiff makes a conclusory statement that Ford dealers are agents of Defendant Ford Motor Company. (Id. at ¶ 3.) However, Plaintiff does not provide any authority in support of their claim that individual dealerships, which are distinct legal entities, are in fact agents of Defendant Ford Motor Company (Id. at ¶¶ 114-122.) Instead, Plaintiff argues the issuance of warranties and direction regarding operating procedures establishes an agency relationship. (Id. at ¶ 115-117.)

Further, the 1st and 7th causes of action fail because Ford did not have a duty to disclose. To prevail on a cause of action for either common-law fraud or violation of the CLRA by virtue of the defendant's concealment or omission of a material fact, the plaintiff must show the defendant has a duty to disclose. A duty to disclose arises when there is a transaction involving "direct dealings between the plaintiff and defendant; it cannot arise between the defendant and the public at large." (*Bigler-Engler v. Breg, Inc.* (2017) 7 Cal.App.5th 276, 311, emphases added.) Where a sufficient relationship or transaction does not exist, no duty to disclose arises even when the defendant speaks. (*Bigler-Engler citing Hoffman v. 162 North Wolfe LLC* (2014) 228 Cal.App.4th 905, 1191–1192; see *Platt Electrical Supply, Inc. v. EOFF Electrical, Inc.* (9th Cir. 2008) 522 F.3d 1049, 1059, fn. 3 [applying California law].)

Plaintiff does not allege she had a direct transactional relationship with Ford. Instead, Plaintiff argues they had a transactional relationship with Defendant because Plaintiff purchased the Subject Vehicle from a Ford authorized dealer, then states in conclusory fashion that Ford "breached its duty to disclose." (Complaint ¶¶ 173-174.) Plaintiff fails to identify any statements that were made by Ford to Plaintiff directly, let alone allege how direct statements were false or objectively misleading; however, Ford does not cite authority holding a duty does not exist when the vehicle is purchased from an authorized dealer.

Plaintiff's theory of concealment is based on the claim that Ford "disingenuously represented a level of innovation, quality, reliability, and efficiency" despite the "overwhelming amount of transmission-related complaints submitted to NHTSA." (Complaint ¶ 127.) Yet, this theory is internally inconsistent – Plaintiff acknowledges that complaints made to the NHTSA are public. (Id. at ¶ 88.) Based on Plaintiff's own allegations, Ford did not have exclusive knowledge of the alleged defects and therefore had no duty to disclose.

8th cause of action for UCL violation

Plaintiff's UCL claim is based on the "unlawful" prong fails where there is no actionable violation of predicate law. (*Durell v. Sharp Healthcare* (2010) 183 Cal.App.4th 1350, 1361.) Because Plaintiffs' breach of warranty and CLRA claims fail, as discussed above, there is no predicate violation to support a derivative UCL claim. Accordingly, Plaintiffs' UCL claims fail under the "unlawful" prong fail.

The demurrer is sustained with ten (10) days leave to amend as to the 1st, 4th, 7th, and 8th causes of action but sustained without leave to amend as to the 5th and 6th.

4.

CVRI2601955

GILLESPIE VS FORD
MOTOR COMPANY

MOTION TO STRIKE ANSWER

TENTATIVE RULING

The motion to strike (punitive damages claims, claim for injunction as to the UCL claim, and attorney's fees in connection with the UCL claim) is moot in light of the ruling on the demurrer.